

Court No. - 33

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3576 of 2017

Applicant :- Yogesh Kumar Jain

Opposite Party :- Krishna Pal Puri Exe. Engineer Electric Urban Distr. Div.

Counsel for Applicant :- Satyendra Narayan Singh

Hon'ble Manoj Misra,J.

The grievance of the applicant is that the opposite party has failed to accord consideration to the application/complaint of the applicant under Clause 6.25 of U.P. Electricity Supply Code 2005, which was required to be considered and decided within a period of two months from the date of production of certified copy of the order before the opposite party. It has been submitted that the certified copy of the order passed by the writ court was served on the opposite party through registered letter dated 22.03.2017. It appears that another application was served on 12.05.2017.

Let notice be issued to the opposite party returnable by 11th October, 2017.

List on 11th October, 2017. If, by the next date, the opposite party complies with the order passed by the writ court, he need not appear in person and a compliance affidavit would suffice.

Order Date :- 22.8.2017

AKShukla/-

Court No. - 16

Case :- CONTEMPT APPLICATION (CIVIL) No. - 3576 of 2017

Applicant :- Yogesh Kumar Jain

Opposite Party :- Krishna Pal Puri Exe. Engineer Electric Urban Distr. Div.

Counsel for Applicant :- Satyendra Narayan Singh

Hon'ble Ashwani Kumar Mishra,J.

An affidavit of compliance has been filed on behalf of the opposite party stating that the opposite party has already been transferred prior to issuance of notice in this petition. It is stated that the present officer has already issued notice fixing 16.10.2017 as the date fixed, on which date the applicant is required to appear in support of his claim. The letter of the Executive Engineer in that regard is annexed as Annexure-4 to the affidavit of compliance.

In view of the fact that the applicant has already been issued notice fixing 16.10.2017 for consideration of his claim in terms of para 6.5 of the U.P. Electricity Supply Code, it would be appropriate to dispose of this petition with a direction that the claim of the applicant shall be considered within a period of three weeks from 16.10.2017. The applicant undertakes to appear before the Executive Engineer on 16.10.2017 and shall be at liberty to place all such material in support of his claim, as may be available or he may be advised.

Subject to the observations made above, this contempt petition is disposed of.

Order Date :- 11.10.2017

Ashok Kr.